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HIGH COURT OF TRIPURA
A_G_A_R_T_A_L_A

WP(C) No.113 of 2026

1. Anil Plantations Private Limited, having its registered office at 11, Crooked Lane, 2nd floor, Kolkata-700069, represented by its Director, Mr. Amit Sanganeria, S/o of Lalit Mohan Sanganeria, 3/B Rafi Ahmed Kidwai Road, Kolkata-70013.

….. Petitioner

-V E R S U S-

1. The State of Tripura, represented by its Secretary, Revenue Department, Government of Tripura, New Capital Complex, P.O.-Kunjaban, P.S. New Capital Complex, Agartala, District: West Tripura, PIN-799010.

2. The Secretary, Revenue Department, Government of Tripura, New Capital Complex, P.O.-Kunjaban, P.S. New Capital Complex, Agartala, District: West Tripura, PIN-799010.

3. The District Magistrate & Collector, Sepahijala district, Bishramganj.

4. The Sub-Divisional Magistrate, Bishalgarh, Sepahijala district.

.....Respondents

B_E_F_O_R_E

HON'BLE JUSTICE DR.T. AMARNATH GOUD

For Petitioner(s)	:	Mr. S. Lodh, Advocate. Mr. D. S. Kunwar, Advocate.
For Respondent(s)	:	Mr. Kohinoor. N. Bhattacharjee, G.A.
Date of hearing and Judgment & order	:	***10.08.2026***
Whether fit for reporting	:	***No***

_F_I_N_A_L_ O_R_D_E_R_

Heard.

[2] The present petition is filed under Article-226 of the Constitution of India for setting aside and revoke the impugned order dated 24.09.2025 passed ion Revenue Case No.14/Rev/P/Secy/2023, under Section-178 of the Tripura Land Revenue & Land Reforms Act, 1960.

[3] The petitioner has prayed for the following reliefs:

> "(i) ISSUE RULE calling upon the respondents and each one of them, to show cause as to why a Writ of Certiorari and/or in the nature thereof, shall not be issued for calling the records, lying with the officials respondents, for rendering substantial and conscionable justice to the petitioner and quashing/ setting aside the impugned Order dated 24.09.2025 passed in Revenue Case No. 14/Rev/P/Secy/2023, under Section 178 of Tripura Land Revenue & Land Reforms Act, 1960 (Annexure-16 supra);

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(ii) ISSUE RULE calling upon the respondents to show cause as to why a Writ of Mandamus and/or in the nature thereof, mandating/directing the Respondents to revoke/rescind the impugned Order dated 24.09.2025 passed in Revenue Case No.14/Rev/P/Secy/2023 under Section-178 of Tripura Land Revenue & Land Reforms Act, 1960 (Annexure-16 supra), and thereafter, restore the records of rights of the land in question;

(iii) After hearing the parties, be pleased to make the Rules absolute in terms of prayers (i) and (ii) above."

[4] The facts in brief are that the petitioner company, Anil Plantations Private Limited, owner and recorded holder of Harishnagar Tea Estate, situated at Bishalgarh under Sepahijala District, Tripura, challenging the impugned order dated 24.09.2025 passed by the respondent No.2 in Revenue Case No. 14/Rev/P.Secy/2023 under Section-178(4) of the Tripura Land Revenue and Land Reforms Act, 1960, whereby the entire land measuring 758.93 acres of the Tea Estate has been directed to vest in the State Government. The Tea Estate was originally owned by the Ex-Ruler of Tripura, Late Maharaja Kirit Bikram Kishore Dev Barman, in whose favour exemption and retention were lawfully granted under Sections-136(1)(f) and 178(1) of the TLR & LR Act by order dated 05.12.1975. Upon due compliance of all conditions, permanent exemption was granted on 12.12.1977. Subsequently, with due permission under Section-187 of the TLR & LR Act, the said Tea Estate was sold to the petitioner company by a registered Sale Deed dated 15.03.1978.

[5] After purchase, the petitioner duly applied for mutation and exemption under Section-178(2) of the TLR & LR Act. Mutation was granted by order dated 04.09.1978 and the Record of Rights was recorded in the name of Anil Plantations Private Limited. Since then, the petitioner has been in continuous possession, paying land revenue regularly from 1978 onwards, developing and running the Tea Estate, which is the sole source of livelihood for its management, employees, and labourers. In the year 2022, the State authorities sought consent from the petitioner for exchange of 6.035 acres of Tea Estate land for implementation of Mukhyamantri Chha Sramik Kalyan Prakalpa relating to 151 labour houses, which the petitioner refused. Thereafter, proceedings under Section-178(4) of the TLR & LR Act were initiated, alleging non-utilisation of land.

[6] By an earlier order dated 30.09.2023, a substantial portion of land was declared khash, which was challenged before this Hon'ble Court in W.P.(C) No. 401 of 2024. The Hon'ble Court, by judgment dated 29.11.2024, remanded the matter to respondent No.2 with a limited direction to establish the ownership and

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locus standi of the petitioner. Despite the petitioner producing title deeds, mutation orders, and khatians, the respondent No.2, without calling upon the petitioner to establish compliance of Section-178(2), passed the impugned order dated 24.09.2025, holding that the petitioner failed to comply with Section-178(2) and directing vesting of the entire Tea Estate land with the State.

[7] Being aggrieved by and dissatisfied with the same, the petitioner has preferred this petition before this Court for redress.

[8] During the course of argument, Mr. S. Lodh, learned counsel appearing for the petitioner has pointed out before this Court that he was having all relevant documents and since, the respondents did not ask or give an opportunity to place these documents regarding seeking of exemption and so, there was no occasion to place it. Thus, he prayed to give an opportunity to place the relevant documents before the concerned authority. Mr. Kohinoor N. Bhattacharjee, learned G.A. appearing for the respondent State has no objection if the matter is remanded back for reconsideration and both side should be given an opportunity to represent the matter before the concerned authority.

[9] Considering the same, without expressing any opinion on merits, the present petition stands disposed of by setting aside the impugned order dated 24.09.2025 to meet the ends of justice. In view of above, the present petition stands disposed of.

[10] As a sequel, miscellaneous applications pending, if any, shall stand closed.

DR.T. AMARNATH GOUD, J

A.Ghosh

ANJAN GHOSH Digitally signed by ANJAN GHOSH Date: 2026.08.11 17:02:01 +05'30'